

Court No. - 21

Case :- WRIT - C No. - 11398 of 2023

Petitioner :- Munna Chauhan

Respondent :- U.P.Power Corporation Limited And 3 Others

Counsel for Petitioner :- Dhirendra Kumar Srivastava

Counsel for Respondent :- C.S.C., Krishna Agarawal, Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Counsel for the respondent Electricity Department prays for and is granted time to obtain instructions.

List as fresh on 18.04.2023.

In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned demand notice.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 7.4.2023

SL

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Respondent :- U.P.Power Corporation Limited And 3 Others

Counsel for Petitioner :- Dhirendra Kumar Srivastava

Counsel for Respondent :- C.S.C., Krishna Agarawal, Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Learned counsel for the respondent Electricity Department prays for and is granted further time to obtain instructions.

Put up as fresh on 26.04.2023.

Interim order is extended till the next date of listing.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 18.4.2023

SL

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Petitioner :- Munna Chauhan

Respondent :- U.P.Power Corporation Limited And 3 Others

Counsel for Petitioner :- Dharendra Kumar Srivastava

Counsel for Respondent :- C.S.C., Krishna Agarawal, Udit Chandra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

The petitioner has assailed the demand notice dated 17.11.2021 issued under Section 3 of the U.P. Government Electrical undertaking (Recovery of Dues) Act, 1958 and consequential order dated 26.03.2022 passed by respondent no.2 for recovery of a sum of Rs.1,48,005/- and other charges from the petitioner.

Shri Udit Chandra, learned counsel appearing for the respondent electricity department on instruction states that the impugned recovery has been withdrawn and that a fresh order will be passed after affording opportunity of filing objections/hearing to the petitioner.

Having regard to the said statement, we dispose of the instant petition with liberty to the respondents to pass fresh order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 26.4.2023

S.P.